Search

LeapFrog Privacy Policy

Last Updated: March 8, 2023.

LeapFrog is passionate about education and dedicated to enriching the lives of children and adults through learning. We believe that learning and personal development are best achieved in a fun and safe atmosphere, and your confidence in our privacy practices is essential to our success. This Privacy Policy ("Policy") describes how we collect, use, and disclose information through the websites, software, applications, online services, and products that link to or post this Policy and are operated by LeapFrog Enterprises, Inc. or its related corporate entities and through our Customer Support services ("LeapFrog") (collectively, the "Services").

1. Information We Collect

The circumstances in which parents may provide information include, without limitation, when they register for the Services, access various content or features, sign up to receive emails or other communications, use community features such as our parent community blogs and discussion forums, participate in promotions, use a send-to-a-friend feature, or directly contact us with questions or feedback. The information that parents may provide includes:

- Contact information and identifiers, such as first and last name, e-mail address, postal address, and telephone number;
- The child's first name and demographic information, such as age, grade level, birth date and gender;
- User name, password, and answers for password reminders;
- Search queries;
- Country and/or state of residence;
- Communications preferences;
- Comments and other information posted in our interactive online forums;
- Correspondence and other information that you provide, including purchase confirmations and receipts;
- Survey-type information, such as information about the parent's or child's hobbies, attitudes, interests, skills, and education level; and
- Billing information, including credit card information, and commercial information, including records of products or services purchased, when you purchase Services.

We also may collect certain information automatically when parents or children use the Services, including:

- Usage data that shows how parents and children use and interact with the Services across their devices, including information about how your child performs and progresses on activities when using the Services (such as play duration, correct answers, etc.);
- Child's wish list selections, if a parent has authorized the child's access to the LeapFrog App Center from certain Services;
- Your browser type and operating system, sites you visited before and after visiting the Services, information about the device you use, the links you click, and the pages you view within the Services, connection date, and other server log information;
- Account and order identifiers, order history of the products that you purchase or download online;
- Persistent identifiers, such as LeapFrog device identification numbers and your Internet Protocol (IP) address, which is the number automatically assigned to your computer or device whenever you access the Internet and that can sometimes be used to derive your general geographic area;
- Internet or other electronic network activity information, including information regarding a consumer's interaction with our Services and other information collected through cookies, web beacons, and similar technologies; and
- Information about your interactions with e-mail messages, such as the links clicked on and whether the messages were opened or forwarded.

LeapFrog may use cookies, tags, web beacons, and similar Internet technologies in connection with the Services. For a complete description of how we and third parties may use these technologies and how you may opt-out or disable certain cookies, please consult our **Cookie Policy**.

We also may obtain additional data, or enhance, update, or add to our existing records with information we acquire from third-party sources, such as data aggregators and third party promotional partners. When parents access third-party services, such as Facebook or Twitter, through the Services to share information about the Services with others, we may collect information from these third-party services.

2. Use of Information

We may use information that we collect through the Services or from third-party sources for a variety of business purposes, including to:

- For our legitimate interests, namely to:
  - respond to correspondence that we receive from you;
  - display advertising to you or send you marketing information about products and services that we think might be of interest to you;
  - provide you with information that you request, including personalized reports that show parents the learning progress for each child or student player for their account;
  - send you transactional or administrative communications;
  - maintain or administer the Services, perform business analyses, or for other internal purposes to improve the quality of our business, the Services, and other products and services we offer;
  - customize and personalize your use of the Services to better meet your needs and the needs of your children;
  - protect our legal rights and enforce our Terms of Use and to prevent fraud or for risk management purposes; and
  - sell or merge part of our business.
- To meet our legal obligations, for example, under accounting and tax laws, and to respond to an enforcement or legal process.
- **With your consent to:**
  - use cookies as explained in our Cookie Policy;
  - provide you with product news and special offers;
  - transfer your information to the U.S. and Hong Kong, as explained below; and
  - as otherwise described to you at the point of collection or pursuant to your consent.
- To provide you with targeted advertisements and offers and promotions that you may be interested in.

3. Data Retention

We only retain your information for as long as it is necessary for the purposes for which it was collected.

4. Disclosure of Information

We do not knowingly sell your information or the information of minors under 16 years of age to third parties for money, but we share your personal information with advertising partners for purposes of targeted advertising. To opt out of such sharing, please click “Do Not Sell or Share My Personal Information.” We do disclose to third parties and service providers the information described below for business purposes, or we permit them to collect the information through our services, as further discussed in the Cookie Policy and this Privacy Policy.

collect to our corporate parent (including VTech), subsidiaries, and other affiliated entities for a variety of business purposes, such as facilitating provision of the Services, marketing and advertising on our behalf, communicating with you, providing customer service, improving the Services, personalizing your experience, and completing a purchase. If you reside in the European Economic Area, please see the **VTech Privacy Policy** for details on how VTech processes your information.

- *Other Entities.* We may disclose the identifiers, commercial information, electronic and network activity, audio information and inferences we collect to the following entities for business purposes:

  - Vendors that perform certain functions or services on our behalf (such as to host the Services, manage databases, process payment information, perform analyses, or send communications for us);

  - Distributors who sell our Services in the country in which you reside; and

  - Vendors LeapFrog uses in connection with marketing and advertising campaigns.

- *Other Parties.* When Required by Law or as Necessary to Protect the Services. We may disclose the information we collect to third parties in order to protect the legal rights, safety, and security of LeapFrog, our corporate parents, affiliates, subsidiaries, business partners, and the users of our Services; enforce our Terms of Use; respond to and resolve claims or complaints; prevent fraud or for risk management purposes; and comply with or respond to law enforcement or legal process or a request for cooperation by a government or other entity, whether or not legally required.
- *In Connection with a Transfer of Assets*. If we sell all or part of our business, or make a sale or transfer of assets, or are otherwise involved in a merger or business transfer, or in the unlikely event of bankruptcy, a business reorganization, or similar event, we may transfer the information we collect as part of such transaction.
- *Other Parties with Your Consent*. We may disclose your information to third parties when you consent to such disclosure, including when you post information to a user profile or a public area of the Services, such as a chat room, forum, blog, or other community tool. When parents choose to access third-party services, such as Facebook or Twitter, through the Services, these third-party services may be able to collect information and notify connections on the third-party services about the parent's use of the Services, in accordance with their own privacy policies. Parents also consent to the disclosure of information when they use password-protected parts of the Services to transfer content to cloud storage, social media, or other recipients.

identify individual users, such as aggregate website usage data or demographic reports.

5. Data Security

We maintain reasonable security procedures to help protect against loss, misuse, unauthorized access, disclosure, alteration or destruction of the information you provide to us. While we strive to protect your information and privacy, please note that no data transmission or storage can be guaranteed to be 100% secure.

For your protection, before selling or otherwise transferring ownership of a LeapFrog-connected device, please be sure to securely remove all information from the device itself, including any play data. For more information, please contact LeapFrog Consumer Service using the information provided below.

6. Children's Privacy

As a leading manufacturer of children's educational toy products, LeapFrog recognizes the importance of protecting children's information and strongly encourages parents to be actively involved in their children's online activities. Here is a video describing how we design our products to safeguard children's personal information and to protect children online. You may like to watch along with your child, so that you can both understand how we handle their personal information and online safety.

We take steps to avoid collecting personal information from children. For example, while children may use some of our products to take photographs, create artwork, and record voice memos or video, this content is stored locally on the device and is not transferred to LeapFrog's server. In addition, children may access child-friendly activities or play areas using only a username (such as a nickname or character name) or similar non-personal login information. Chat functionality and similar interactive features are designed to help prevent children from revealing their full names, email addresses, or similar information that could identify the child. For example, interactive chats may require children to choose from a pre-selected menu of short phrases or emoticons that do not contain personally identifiable information. We do not knowingly collect, use, or disclose personal information from children without prior parental consent, except as permitted by law.

Parents can access and control their children's information and activities. For online play areas that contain interactive features, parents may be given additional controls to manage their children's online activities, including the ability to set play time limits and turn certain features on and off. Prior to taking such actions, the parent may be required to log in to his or her LeapFrog account or otherwise verify his or her identity. Please note that you may need to separately access and update each child profile under your account in order for certain

transfer of data from the device to your computer.

If you have questions concerning our information practices with respect to children, or if you would like to review, have deleted, or stop the further collection of your child's personal information, you may email us at support@leapfrog.com.

7. Privacy Policy Updates

We reserve the right to modify this Privacy Policy at any time by posting revisions here. Your continued use of the Services after any modification to the Privacy Policy constitutes your acceptance of the new terms and conditions.

8. Links to Third Party Sites and Services

The Services may contain links to other websites or online services that are operated and maintained by third parties and that are not under the control of or maintained by LeapFrog. Such links do not constitute an endorsement by LeapFrog of those other websites, the content displayed therein, or the persons or entities associated therewith. This Privacy Policy does not apply to such third-party content or services. We encourage you to review the privacy policies of these third parties before using their websites or services.

9. International Data Transfers

By using the Services, you consent to the collection, storage, processing, and transfer of your information in and to the United States and Hong Kong, or other countries and territories. While some of these countries may not offer the same level of privacy protection as your own, LeapFrog commits to uphold the privacy protections as explained in this Policy.

10. Rights and Choices

LeapFrog provides you with the ability to review and correct certain information that you have provided to us. If you wish to access or update your information, you may do so by logging in to an account management section on the Service. These areas are usually marked clearly as "My Account," "Your Account," "Edit Profile," "Settings," or similar names, and may offer a variety of options that allow you to update information, delete accounts or profiles, or otherwise maintain control over how your information is collected, stored, used, or disclosed by LeapFrog.

Depending on where you reside, some laws may provide you have certain rights in respect of your personal information, subject to limitations in national law. These rights include a right of

your consent. Unless these rights can be exercised as explained above, you can contact us at support@leapfrog.com or at the address below.

For example, subject to applicable law, you may request that we disclose to you the following information covering the preceding 12 months:

(1) The categories of personal information we have collected about you and their sources;

(2) The business or commercial purpose for collecting or selling personal information;

(3) The categories of third parties to whom we disclose personal information;

(4) The categories of personal information about you that we have sold or shared or disclosed for a business purpose and the categories of third parties that received it.

LeapFrog has collected the following categories of personal information over the preceding 12 months:

- Identifiers such as a real name, alias, postal address, unique personal identifier, online identifier, internet protocol address, email address, account name, or other similar identifiers. This category includes information such as real names, IP addresses, online identifiers, email addresses, postal addresses, and account and user names.
- Telephone numbers and credit card information.
- Characteristics of protected classifications under applicable law. This category may include information such as gender and age.
- Commercial information, including records of personal property, products or services purchased, obtained, or considered, or other purchasing or consuming histories or tendencies. This category includes information such as products purchased, obtained, or considered.
- Internet or other electronic network activity information. This category includes information such as analytic cookies, action tags, browsing and search histories, and logs of use of LeapFrog Services.
- Geolocation data. This category includes information such as location cookies and IP addresses.
- Inferences drawn from any of the information identified in this subdivision to create a profile about a consumer reflecting the consumer's preferences, characteristics, psychological trends, predispositions, behavior, attitudes, intelligence, abilities, and aptitudes. This category includes information such as previous purchases and preferences.

We will verify your identity before complying with any such request. Once we receive your request, we will verify it by matching the email address you provide to the one connected to your LeapFrog account. For requests to access specific pieces of information that we have collected, we may also ask for additional information like details about a product you purchased, and we may ask you to submit a signed declaration under penalty of perjury that you are the consumer whose personal information is the subject of the request.

You may be entitled, in accordance with applicable law, to submit a request through an authorized agent or to appeal a refusal to take action on your request. To designate an authorized agent to exercise your rights and choices on your behalf, please provide a signed, written letter of authorization to your agent or a power of attorney and have your agent provide us with that letter or power of attorney. We may deny a request from an authorized agent who does not submit proof that you authorized the agent to act on your behalf. To appeal a denial, please contact us at support@leapfrog.com and include the ID of the request that you are appealing.

LeapFrog does not sell your personal information for money, but we share your personal information with our advertising partners, such as data analytics providers, for purposes of providing you with targeted advertisements. In the past 12 months, we have shared identifiers, characteristics of protected classifications, commercial information, internet or other electronic network activity, geolocation information, and inferences with these partners. You can opt-out of sharing for such purposes by clicking “Do Not Sell or Share My Personal Information” link at the bottom of the website. Or, if your browser supports it, you can turn on the Global Privacy Control for that particular browser . If your browser or device is using a Global Privacy Control opt-out setting, we will detect it and honor it on that specific browser or device only.

We do not knowingly share for targeted advertising the information of consumers who are less than thirteen years of age without the consent of a parent or guardian. We do not knowingly share for targeted advertising the information of consumers between the age of thirteen and sixteen.

In the preceding 12 months, we have disclosed for a business purpose the following categories of personal information about California residents, and we have disclosed this information to the following third parties, for the purposes described in Section 3.

- Identifiers such as a real name, alias, postal address, unique personal identifier, online identifier, internet protocol address, email address, account name, social security number, driver’s license number, passport number, or other similar identifiers.

and our affiliates, and other users of LeapFrog Services.
- Telephone numbers and credit card information was disclosed to logistic services providers, payment processors, and our affiliates.
- Characteristics of protected classifications under applicable law. This category may include people's age group. Information in this category was disclosed to our affiliates.
- Commercial information, including records of personal property, products or services purchased, obtained, or considered, or other purchasing or consuming histories or tendencies. Information in this category was disclosed to payment processors, logistics services providers, and our affiliates.
- Internet or other electronic network activity information. Information in this category was disclosed to marketing providers, analytic providers, and our affiliates.
- Geolocation data. Information in this category was disclosed to payment processors, logistics services providers, data analytics providers, and our affiliates.
- Inferences drawn from any of the information identified in this subdivision to create a profile about a consumer reflecting the consumer's preferences, characteristics, psychological trends, predispositions, behavior, attitudes, intelligence, abilities, and aptitudes. Information in this category was disclosed to our affiliates.

LeapFrog does not process sensitive personal information.

We will not discriminate against you for exercising your rights and choices, although some of the functionality and features available on the Services may change or no longer be available to you.

Some mobile and web browsers transmit "do-not-track" signals. Because of differences in how web browsers incorporate and activate this feature, it is not always clear whether users intend for these signals to be transmitted, or whether they even are aware of them. We currently do not take action in response to these signals.

11. Communications Preferences

You may choose to receive promotional emails, newsletters, and similar communications from us. You may opt out of receiving commercial emails from us by clicking on the opt-out or "unsubscribe" link included in the commercial e-mails you receive. Please note that opt-out requests may take up to 5 business days to be effective. Your opt-out request will not apply to messages that you request or that are not commercial in nature. For example, we may contact you concerning any purchases you have made with us, even if you opt out of receiving unsolicited commercial email messages.

12. Contact Us

U.S. and Canada:

LeapFrog Enterprises, Inc.
Attn: Data Privacy Officer
2200 Powell Street, Suite 500
Emeryville, CA 94608
support@leapfrog.com
1-800-701-LEAP (5327)

Australia and New Zealand:

VTech Electronics (Australia) Pty Limited
Suite 4, Level 6, 22 Albert Road
South Melbourne
Victoria, 3205
Australia
enquiriestoys_aunz@vtech.com
1800 862 155

Ireland and the United Kingdom:

VTech Electronics Europe Plc
Napier Court, Abingdon Science Park
Abingdon, Oxfordshire, OX14 3YT
United Kingdom
info@leapfrog.com
01 702 200 0244

Rest of World:

LeapFrog Enterprises, Inc.
Attn: Consumer Service
2200 Powell Street, Suite 500
Emeryville, CA 94608
support@leapfrog.com

If you reside in the European Economic Area and you still have concerns about our collection and use of your information, you have a right to lodge a complaint with the Supervisory Authority for data protection in your country, such as the ICO in the UK or the CNIL in France.

Back to Top









About +

Support +

International Sites +

Legal Terms | Privacy Policy | CA Supply Chain | Cookie Policy | Update Cookie Settings |

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